

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #12	CCRB Case #: 201802084	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 03/11/2018 7:40 PM	Location of Incident: 3508 East Tremont Avenue	18 Mo. SOL 9/11/2019	Precinct: 45		
Date/Time CV Reported Fri, 03/16/2018 12:53 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 03/16/2018 12:53 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Marcy Velez	4678	926250	045 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. CPT Johnny Orellana	00000	920679	045 PCT		
2. POM Efrain Vazquez	05697	937682	049 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . SGT Marcy Velez	Abuse: Sergeant Marcy Velez stopped § 87(2)(b)			A . Substantiated	

Case Summary

On March 16, 2018, § 87(2)(b) filed this complaint in person at the CCRB.

At approximately 7:40 p.m. on March 11, 2018, § 87(2)(b) took his § 87(2)(b)-old son, § 87(2)(b) to the 45th Precinct stationhouse in the Bronx. § 87(2)(b) intended to pass custody of his son to his son's mother, § 87(2)(b), or his son's older sister. Instead, § 87(2)(b) boyfriend, § 87(2)(b), was present at the stationhouse and attempted to claim custody of the child. § 87(2)(b) was off-duty, in plainclothes, and did not take police action during this incident.

§ 87(2)(b) refused to grant custody of § 87(2)(b) to § 87(2)(b) and § 87(2)(b) left the stationhouse and walked to their vehicle, which was parked in front of the 7/11 convenience store located next to the stationhouse at 3508 East Tremont Avenue in the Bronx. § 87(2)(b) went into the stationhouse and requested assistance from Sergeant Marcy Velez of the 45th Precinct. § 87(2)(b) and Sergeant Velez then followed § 87(2)(b) and § 87(2)(b) as they walked towards their vehicle.

§ 87(2)(b) and § 87(2)(b) were standing near their vehicle when § 87(2)(b) approached them. Sergeant Velez approached them soon after, and stopped § 87(2)(b) from leaving by holding his car door and telling him that he could not leave (**Allegation A: Abuse of Authority: Stop: Substantiated**). However, § 87(2)(b) then pulled his car door shut and drove away.

The investigation obtained three videos related to this case (**Board Review 01, Board Review 02, Board Review 03**). These videos did not capture any FADO allegations but they confirm some of the basic reported facts of the incident. § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Marcy Velez stopped § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on March 16, 2018 (**Board Review 04**). Sergeant Velez was interviewed on April 17, 2018 (**Board Review 05**). § 87(2)(b) was interviewed on May 9, 2018 (**Board Review 06**).

It is undisputed that on the incident date, § 87(2)(b) took § 87(2)(b) to the 45th Precinct stationhouse as part of a planned custody exchange. When § 87(2)(b)'s mother, § 87(2)(b) was delayed in reaching the stationhouse, she asked her boyfriend, § 87(2)(b) to pick up § 87(2)(b) in her place. § 87(2)(b) spoke to § 87(2)(b) in the front entryway of the stationhouse. § 87(2)(b) refused to let § 87(2)(b) take custody of § 87(2)(b) because the two men had never met before and § 87(2)(b) was not listed in the court agreement between § 87(2)(b) and § 87(2)(b) as a person who was authorized to have custody of § 87(2)(b). § 87(2)(b) walked with § 87(2)(b) away from § 87(2)(b) and towards his vehicle. § 87(2)(b) asked Sergeant Velez, who was working as the stationhouse desk officer, for assistance with the situation. The two officers then went outside and approached § 87(2)(b) and § 87(2)(b) at their vehicle. With § 87(2)(b) sitting in the back

seat of the vehicle, Sergeant Velez asked § 87(2)(b) to identify himself. § 87(2)(b) identified himself as an off-duty officer. This was the first time he had identified himself to § 87(2)(b) during the incident. Sergeant Velez then spoke to § 87(2)(b) who got into his vehicle and left.

In his sworn statement, § 87(2)(b) reported that after § 87(2)(b) identified himself, Sergeant Velez told § 87(2)(b) that he was not free to leave. § 87(2)(b) said that he was going to leave, and Sergeant Velez said that he could not leave because § 87(2)(b) had identified himself as an off-duty officer. § 87(2)(b) sat down in the driver's seat of the car, and tried to close the door with his left hand. Sergeant Velez held the top edge of the door to prevent § 87(2)(b) from closing it. This happened "a couple of times." The struggle with the door caused pain in § 87(2)(b)'s hand, as he had finished having hand surgery two weeks prior. As they struggled with the door, § 87(2)(b) repeatedly asked Sergeant Velez to release the door. Sergeant Velez said, "You can't go anywhere, I need to figure this out." § 87(2)(b) said "There is nothing to figure out. This is my son, I don't know this man, I'm leaving." § 87(2)(b) then succeeded in closing the car door, and drove away.

In his interview, Sergeant Velez stated that he had been a sergeant for approximately four years, all of which he had been assigned to the 45th Precinct. When asked what the role of officers typically is during a custody exchange, Sergeant Velez said that they "really don't get involved" and that there is no specific action that a member of service is required to take.

Sergeant Velez described § 87(2)(b) entering the stationhouse and saying "Sarge, I have a situation outside, I'm off-duty, could you assist me?" Sergeant Velez explained to the investigation that when an officer is off-duty and needs help, that it is procedure for the officer to identify himself as an off-duty officer and not simply as a civilian. § 87(2)(b) did not provide any further information about the "situation" to Sergeant Velez while inside of the stationhouse.

Sergeant Velez followed § 87(2)(b) outside of the stationhouse. Both § 87(2)(b) and § 87(2)(b) were speaking as Sergeant Velez approached them. § 87(2)(b) stated to Sergeant Velez that he had been told by his girlfriend that he was going to pick up her daughter. § 87(2)(b) stated to Sergeant Velez that this arrangement was not acceptable under the child custody agreement between himself and the child's mother, and that he did not feel comfortable dropping off his child with § 87(2)(b). § 87(2)(b) said that there was a court-ordered agreement between himself and the child's mother, but did not provide any documents to prove that. Sergeant Velez "tried to ascertain more information," but § 87(2)(b) was being "combative" and "got angry" with Sergeant Velez. § 87(2)(b) said that he was going to get into his car.

Sgt. Vazquez did not physically restrain § 87(2)(b) from leaving. Sergeant Velez did not recall any difficulty with § 87(2)(b) closing his vehicle door. Sergeant Velez did not recall physically preventing § 87(2)(b) from closing the door. Sergeant Velez "definitely did not" struggle with § 87(2)(b) such that both were pulling on the car door at the same time. § 87(2)(b) did not complain of physical pain in his hand or wrist.

When asked by the investigation if he told § 87(2)(b) that he was not free to leave, Sgt. Vazquez said that he did not. However, when asked if he said, "You can't go anywhere, I have to figure this out," Sergeant Velez said that he "probably" did.

Sergeant Velez was outside by § 87(2)(b)'s car for approximately three to five minutes. During that time, § 87(2)(b) did not do anything and § 87(2)(b) did

not report anything that led Sergeant Velez to believe that a crime had been or was being committed.

In his interview, § 87(2)(b) provided a statement that was largely consistent with Sergeant Velez's. When asked by the investigation if Sergeant Velez said, "You can't go anywhere, I have to figure this out," § 87(2)(b) confirmed that he did say this. When asked by the investigation whether there was ever a point in which Sergeant Velez held § 87(2)(b)'s car door open, § 87(2)(b) confirmed that this happened after § 87(2)(b) had refused to answer Sergeant Velez's questions. § 87(2)(b) got into the driver's seat of his car, and Sergeant Velez held the car door with one hand. § 87(2)(b) could not recall where on the car door Sergeant Velez placed his hand but estimated that he held the car door for approximately five to ten seconds before § 87(2)(b) "slammed" it shut. At no point did § 87(2)(b) and Sergeant Velez physically struggle for control over the door or tug back and forth on it. § 87(2)(b) did not complain of pain in his hand or wrist over the course of the incident.

The investigation obtained videos from multiple cameras within and outside of the 45th Precinct stationhouse. § 87(2)(g) In the video, § 87(2)(b) can be seen speaking to § 87(2)(b) and § 87(2)(b) in the stationhouse entrance. The two civilians leave, and § 87(2)(b) enters the main stationhouse area. He appears to speak to Sergeant Velez and then leaves the stationhouse himself. Sergeant Velez then walks to the stationhouse door, walks through the entrance area, stands outside of the exterior door while looking around, and then walks away from the stationhouse and towards the parking lot where the stop (**Allegation A**) would eventually occur. Over the course of the video, Sergeant Velez consistently walks at a slow pace. He does not speak to any officer besides § 87(2)(b) and does not accompany § 87(2)(b) from the stationhouse towards the parking lot.

A police officer may stop a civilian only when he or she possesses a reasonable suspicion, based on specific articulable facts, that a criminal activity is occurring. People v. De Bour 40 N.Y.2d 210 (1976) (**Board Review 07**). According to NYPD Patrol Guide Section 215-25, members of the service are reminded that the Department has no authority to take enforcement action when one or more parties involved in a child custody exchange refuses to comply, wholly or in part, with the exchange. Patrol Guide Section 215-25 was originally released as an Interim Order on March 21, 2018, 10 days after this incident, and is included in this report for informational purposes only (**Board Review 08**).

As noted above, it is undisputed that no crime occurred over the course of this incident and neither Sergeant Velez nor § 87(2)(b) ever suspected § 87(2)(b) of committing a crime. § 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A** be substantiated.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**Board Review 09**).
- Sergeant Velez has been a member of service for 18 years and has been a subject in six previous complaints and 13 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation regarding this complaint.
- A request for any Notice of Claim regarding this incident has been submitted to the New York City Comptroller's Office, and the results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 12

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date